

5	30-2025-01518313 Vargas vs. Avalonbay Communities, Inc.	Defendant Avalonbay Communities, Inc.’s (“Defendant”) Motion to Stay PAGA Claim is DENIED. Defendant asks that the court stay the Sixth Cause of Action for penalties under the Private Attorneys General Act (“PAGA”) “pending final determination of the earlier-filed consolidated cases, <i>Arzooian v. AvalonBay Communities, Inc., et al.</i> in Los Angeles Superior Court, Case No. 24STCV04194” (“<i>Arzooian Consolidated Action</i>”). (Prop. Order ¶ 1.) Defendant seeks relief under the doctrine of exclusive concurrent jurisdiction and alternatively asks that the court exercise its inherent power to stay the action. The court finds that neither ground supports a stay of this action pending the final determination of the <i>Arzooian Consolidated Action</i>. The <i>Arzooian Consolidated Action</i> consists of a class action and a separate PAGA action brought by the same plaintiff. The PAGA Action is Case No. 24STCV10725 (the “<i>Arzooian PAGA Action</i>”), which consists of a single PAGA claim wherein Arzooian alleges claims on behalf of “all other current and former non-exempt employees of Defendants working within the Civil Penalty Period . . . and as it pertains to the alleged claims for failure to comply with Labor Code sections 96, 98.6, 200, 201, 202, 203, 204, 210, 226, 226.3, 227.3, 232, 232.5, 245, 246, 432, 432.2, 432.5, 432.7, 432.8, 1102.5, 1197.5, and, on behalf of all employees of Defendants working within the Civil Penalty Period.” (Kleinkauf Dec., Ex. F.) On October 10, 2025, Plaintiff Angelica Maria Rios Vargas (“Plaintiff”) filed a complaint against Defendants Avalonbay Communities, Inc. and Alfonso Martinez (collectively, “Defendants”), and Does 1-5, asserting the following claims: 1. Hostile Work Environment in Violation of FEHA 2. Sexual Harassment in Violation of FEHA 3. Failure to Prevent Harassment in Violation of FEHA 4. Labor Code § 1198.5(k) Penalty 5. Labor Code § 226(f) Penalty (ROA 2.) On December 16, 2025 (ROA 14), Plaintiff filed a First Amended Complaint to add a PAGA claim as the Sixth Cause of Action. On April 24, 2026 (ROA 62), Plaintiff filed the operative Second Amended Complaint (“SAC”), which still includes the PAGA claim. As part of the PAGA claim, Plaintiff alleges Defendants violated Labor Code sections 226 (failure to maintain and provide records), 432 (failure to provide signed instruments relating to employment), 1198.5
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		(failure to provide personnel records), and 2802 (failure to reimburse business expenses). While this action and the <i>Arzooian PAGA Action</i> overlap in that they seek PAGA penalties for violations of Labor Code sections 226 and 432, these actions are also significantly different. The <i>Arzooian PAGA Action</i> consists of several other Labor Code violations that are not at issue in this action, and the <i>Action Arzooian Consolidated Action</i> includes class claims. This action involves claims for penalties for violations of Labor Code sections 1198.5 and 2802, which are not at issue in the <i>Arzooian PAGA Action</i>. “[T]he power of a court to stay proceedings . . . was inherent at common law and is now vested in the superior courts of this state.” (<i>Bailey v. Fosca Oil Co.</i> (1963) 216 Cal. App. 2d 813, 817.) “The case management tools available to trial courts, including the inherent authority to stay an action when appropriate . . . can overcome problems of simultaneous litigation if they do occur.” (<i>Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal. 4th 739, 758.) “[W]hen two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others.” (<i>Shaw v. Superior Ct. of Contra Costa Cnty.</i> (2022) 78 Cal. App. 5th 245, 255.) “The rule is based upon the public policies of avoiding conflicts that might arise between courts if they were free to make contradictory decisions or awards relating to the same controversy and preventing vexatious litigation and multiplicity of suits.” (<i>Id.</i>) “[T]he rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions.” (<i>Id.</i> at 256.) “If the court exercising original jurisdiction has the power to bring before it all the necessary parties, the fact that the parties in the second action are not identical does not preclude application of the rule.” (<i>Id.</i>) “Moreover, the remedies sought in the separate actions need not be precisely the same so long as the court exercising original jurisdiction has the power to litigate all the issues and grant all the relief to which any of the parties might be entitled under the pleadings.” (<i>Id.</i> [emphasis added].) “Where the exclusive concurrent jurisdiction rule applies, the second action should be stayed.” (<i>Id.</i> at 257.) Courts have applied the exclusive concurrent jurisdiction rule to PAGA representative suits. (<i>Id.</i>) “Recognizing a court's power to stay
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		a subsequent PAGA representative suit that is wholly subsumed by a prior PAGA representative suit—i.e., where the second suit alleges the same Labor Code violations based on the same facts and theories as the prior suit—does not eliminate the code enforcement mechanism provided by PAGA: the first suit proceeds, thus fulfilling PAGA's purpose.” (<i>Id.</i> at 260 [emphasis added].) Pursuant to the doctrine of exclusive concurrent jurisdiction, this action should only be stayed if it involves the same Labor Code violations and based on the same facts and theories as the <i>Arzooian Consolidated Action</i>. However, as there are claims in this action not at issue in the earlier filed action, this action is not “wholly subsumed” by the earlier action. (<i>Shaw</i>, 78 Cal. App. 5th at 257.) The court for the <i>Arzooian PAGA Action</i> does not have “the power to litigate all the issues and grant all the relief to which any of the parties might be entitled under the pleadings [in this action].” (<i>Id.</i> at 256.) Thus, the doctrine of exclusive concurrent jurisdiction does not apply. The court also declines to exercise its discretion to stay the case as it would not promote the interests of justice or conserve judicial resources. This action involves multiple claims not at issue in the <i>Arzooian Consolidated Action</i>, and Defendant has not adequately demonstrated that a stay of this action is warranted in light of these distinct claims. Thus, Defendant has not demonstrated adequate grounds to justify a stay and this Motion is denied. Defendant is ordered to give notice of this ruling.
6	30-2013-00637388 Estrada vs. Automobile Club of Southern California	Defendant Automobile Club of Southern California’s (“Defendant”) Renewed Motion for Judgment on the Pleadings is GRANTED WITHOUT LEAVE TO AMEND. On March 13, 2013, Plaintiff Victor Estrada (“Plaintiff”) filed this action against Defendant and Does 1-50, which included a Tenth Cause of Action for Violation of the Private Attorney General Act (“PAGA”). (ROA 2.) On July 29, 2019, Plaintiff filed the operative First Amended Complaint (“FAC”). (ROA 399.) The Tenth Cause of Action is the only remaining claim in this action as the other claims have been dismissed. (ROA 843.)